

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
David A. Vandever) **Docket No. 2017-200**
Application Tracking No. 100.0128643)

STIPULATION AND CONSENT ORDER

NOW COME, the State of Vermont, by and through State Prosecuting Attorney Rachel Allen, and the Respondent, David A. Vandever, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners ("Board") has authority to deny an applicant's license if it finds that the applicant has engaged in unprofessional conduct in any jurisdiction. 3 V.S.A. § 129(a); 26 V.S.A. § 4093; and the Rules of the Office of Professional Regulation.

Stipulated Facts

2. David A. Vandever ("Respondent") of Brattleboro, Vermont, applied for licensure as a Licensed Marriage and Family Therapist on March 1, 2017. The application was assigned the following tracking number: 100.0128643.
3. On March 17, 2017, Respondent's March 1, 2017 application was preliminarily denied.

Violation One: 26 V.S.A. § 4042(a)(2). Conduct which evidences moral unfitness to practice marriage and family therapy.

4. Respondent's March 1, 2017 application disclosed that his California Marriage and Family Therapist License No. LMFT 37501, was disciplined in the State of California on April 11, 2016.
5. Accusation No. 2002015001967, before the California Board of Behavioral Sciences, Department of Consumer Affairs, states that from approximately March 2015, to April 2015, Respondent documented 10.1 hours of service that Respondent never provided as an outpatient clinical psychotherapist at a children's clinic in California.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

6. On April 11, 2016, a Stipulated Settlement and Disciplinary Order went into effect, placing Respondent on three (3) years of probation. *See* Attachment A.
7. The alleged unprofessional conduct in Paragraphs 2 through 6, above, would constitute unprofessional conduct in Vermont. Pursuant to 3 V.S.A. §129(a)(5), the Board may discipline any licensee or refuse to license any person who has had a license application denied or license revoked, suspended, limited, conditioned or otherwise disciplined by a licensing agency in another jurisdiction for conduct which would constitute unprofessional conduct in this state, or has surrendered a license while under investigation for unprofessional conduct.

Understandings

8. Respondent acknowledges that the facts above are true and that the conditions set out in the Consent Order below are appropriate and necessary to protect the public.
9. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
10. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a contested hearing.
11. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
12. Respondent is not under the influence of any drugs or alcohol at the time Respondent signs this Stipulation and Consent Order.
13. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
14. Respondent voluntarily waives Respondent's right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
15. Respondent agrees that the Order set forth below may be entered by the Board.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board of Allied Mental Health Practitioners hereby **WARNS** the Respondent's license when issued.
- B. When issued, the Board hereby **CONDITIONS** the Respondent's license to practice **for a minimum of THREE (3) years from the date of entry below**. The conditions are as follows:

- 1. Issuance of License.

Upon the commencement of these conditions, Respondent shall be issued a license labeled "conditioned."

- 2. Length of Time of Conditions Imposed.

The conditions shall remain in place until Respondent has completed all conditions ordered. Respondent shall be subject to the conditions until Respondent completes **a minimum of three (3) years** of supervised practice in which he works at least forty (40) hours every two (2) weeks as a Licensed Marriage and Family Therapist.

- 3. Monitoring.

The Vermont Office of Professional Regulation ("OPR"), through the Enforcement Case Manager, shall be responsible for monitoring Respondent's compliance with these Conditions. All reports or correspondence regarding compliance with these conditions shall be submitted to the Case Manager in accordance with the Conditions listed below.

- 4. Required Coursework.

Respondent must successfully complete (i.e., receive a passing grade, if applicable) a pre-approved course on law and ethics.

- a. Prior to enrollment, Respondent must submit course information to the Secretary of State's Office of Professional Regulation, Enforcement Case Manager, for approval.

This course must be completed within one hundred (100) days of the date of entry of this Stipulation and Consent Order. Failure to complete such courses within the prescribed timeframe shall constitute a violation of this Stipulation and Consent Order.

- 5. Individual psychotherapy.

Respondent shall engage in individual psychotherapy with a professional preapproved by the Board or designee who is qualified and experienced to provide counseling.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

Respondent shall comply with the psychotherapy treatment plan until the treating professional certifies in writing to the Board that such counseling is no longer necessary.

Compliance with the treatment plan includes, but is not limited to, engaging in face-to-face meetings with the treating professional at the frequency recommended in the treatment plan.

Respondent shall authorize Respondent's psychotherapy treating professional to submit to the Board **quarterly** written reports. The initial treatment plan and all revisions to the treatment plan must be included in the quarterly reports to the Board. Respondent shall authorize Respondent's treating professional to provide all information requested by the Board, either orally or in writing, at any time during the period this Consent Order is in effect.

6. Practice Under Supervision.

Respondent shall practice under supervision for a minimum of three (3) years.

- a. Supervisor Requirements. Respondent shall practice as a Licensed Marriage and Family Therapist under the supervision of a pre-approved Marriage and Family Therapist, Licensed Clinical Mental Health Counselor, Licensed Clinical Social Worker, or doctorate level Psychologist in good-standing and licensed by the State of Vermont ("Supervisor"). The supervising relationship shall not create a conflict of interest between the Respondent and the Supervisor. **The Supervisor must have an in-person meeting monthly with Respondent.**
- b. Respondent shall, within thirty (30) days of the date of practice in Vermont as a Licensed Marriage and Family Therapist, cause the Supervisor to submit a letter, on letterhead, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.
- c. Monthly Reviews for the First Year of Supervision. **For the first year of supervision, Respondent and Supervisor must meet monthly to discuss and review a sampling of Respondent's client files.** Supervisor must provide a written report on the Supervisor's findings monthly.
- d. If the Secretary of State's Office of Professional Regulation Enforcement Case Manager and the Supervisor agree that Respondent has successfully complied with the first year of supervision, Respondent may petition the Board to reduce the Supervisory monthly meetings and reports to be done on a quarterly basis.
- e. If Respondent changes employment, Respondent shall notify the OPR Enforcement Case Manager of this change and submit the name, contact

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

information, and resume of a new potential Supervisor within ten (10) days from the date of employment.

7. Reports from Employers/Program Director. Within one (1) month of the date of this order or within one (1) month of the commencement of employment and **quarterly** thereafter, Respondent shall cause every employer Respondent has worked for during the month to submit to the Board an evaluation of Respondent's work performance and attendance during that month. These reports shall be submitted in writing. All employer reports shall indicate satisfactory performance (ie., consistently meeting all standards of practice) and attendance.
8. Prohibition on Employment. Respondent must practice as a Licensed Marriage and Family Therapist at an agency. **Respondent is prohibited from working as an independent practitioner for the length of these conditions.**
9. Interview with the Board or its Designee. Respondent shall appear in person for interviews with the Board or its designee upon request.
10. Out-of-State Practice. Before any out-of-state practice can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval from the Board. The Board will approve out-of-state mental health practice so long as Respondent can still comply with the provisions of this Consent Order. If Respondent receives discipline on a mental health license held in another state during the conditioned period, Respondent must inform the Board of such, in writing, within ten (10) days of receiving such discipline.
11. Notification of Place of Employment/Personal Address/Telephone Number. Within ten (10) days of the date of entry of this Consent Order, Respondent shall notify the Board, in writing, of Respondent's current place of employment, personal address, and telephone number. Respondent shall further notify the Board, in writing, within forty-eight (48) hours of any change in employment (including resignation or termination), personal address, or telephone number.
12. Notification to Other States. In the event that Respondent is licensed in any other state(s), Respondent must inform the allied mental health licensing board of the state(s) in which Respondent is licensed of the conditional status of Respondent's Vermont license within thirty (30) days of the date of entry of this Order.
13. License Renewal. This Order does not automatically extend the license and Respondent must comply with the requirements for license renewal.
14. Release of Information Forms. This Order requires Respondent to authorize drug and/or alcohol treatment providers to report information in verbal and/or written format and/or to discuss Respondent and any and all treatment rendered to Respondent for drugs and/or alcohol with the Board or its designee. Any and all of this information may be provided to the Office of Professional Regulation

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

investigators, and that the information may be used for further prosecutions if so warranted or if the Office of Professional Regulation determines that said information violates the terms of this Order or any rules or laws governing the practice of a licensed clinical mental health counselor.

Respondent is entitled to revoke this consent at any time. However, any revocation shall be considered a violation of this Order. This consent expires when the conditions are removed from Respondent's Clinical Mental Health Counselor license.

This Stipulation and Consent Order shall itself constitute a valid written consent pursuant to the requirements of 42 C.F.R. § 2.31. Respondent understands that Respondent's treatment provider may require Respondent to sign a separate and distinct consent meeting the requirements of 42 C.F.R. § 2.31.

15. Costs.

Respondent shall bear all costs of complying with this Consent Order.

16. Violation of this Order.

If Respondent violates this Order the Board, after giving Respondent notice and an opportunity to be heard, may rescind or modify this Order and impose additional appropriate disciplinary actions. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.

17. Completion of Conditional License Period.

Respondent shall submit a petition to the Docket Clerk to remove any and all conditions on Respondent's license. The State will assent to or oppose Respondent's petition. The Board will conduct a hearing if necessary.

Respondent bears the burden and must present proof that Respondent has fully complied with the terms of this Order and Supervised Practice is no longer necessary to protect the public.

- C. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for obtaining a license, maintaining a license, license renewal, and license reinstatement.
- D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

AGREED TO:

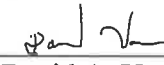
Dated: 6/7/17

STATE OF VERMONT
SECRETARY OF STATE

By: 
Rachel Allen
State Prosecuting Attorney

DAVID A. VANDEVERT
RESPONDENT

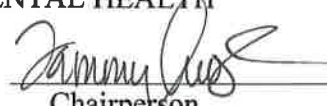
Dated: 06/06/2017

By: 
David A. Vandevent

APPROVED AND SO ORDERED:

Dated: 6/15/17

VERMONT BOARD OF ALLIED
MENTAL HEALTH

By: 
Chairperson

Date of Entry: 6/20/17

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

1 KAMALA D. HARRIS
Attorney General of California
2 JOSHUA A. ROOM
Supervising Deputy Attorney General
3 NICHOLAS TSUKAMAKI
Deputy Attorney General
4 State Bar No. 253959
455 Golden Gate Avenue, Suite 11000
5 San Francisco, CA 94102-7004
Telephone: (415) 703-1188
6 Facsimile: (415) 703-5480
E-mail: Nicholas.Tsukamaki@doj.ca.gov
7 *Attorneys for Complainant*

8 **BEFORE THE**
BOARD OF BEHAVIORAL SCIENCES
9 **DEPARTMENT OF CONSUMER AFFAIRS**
10 **STATE OF CALIFORNIA**

11 In the Matter of the Accusation Against:

Case No. 2002015001967

12 **DAVID ARTHUR VANDEVERT**
13 **925 The Alameda # 24**
Berkeley, CA 94707

OAH No. 2015120600

14 **Licensed Marriage and Family Therapist**
15 **License No. LMFT 37501**

STIPULATED SETTLEMENT AND
DISCIPLINARY ORDER

16 Respondent.

17
18 IT IS HEREBY STIPULATED AND AGREED by and between the parties to the above-
19 entitled proceedings that the following matters are true:

20 PARTIES

21 1. Kim Madsen (Complainant) is the Executive Officer of the Board of Behavioral
22 Sciences. She brought this action solely in her official capacity and is represented in this matter
23 by Kamala D. Harris, Attorney General of the State of California, by Nicholas Tsukamaki,
24 Deputy Attorney General.

25 2. Respondent David Arthur Vandever (Respondent) is represented in this proceeding
26 by attorney Christopher J. Zopatti, whose address is: 2601 Main St., Ste. 800, Irvine, CA 92614.

27 3. On or about December 28, 2000, the Board of Behavioral Sciences issued Marriage
28 and Family Therapist License No. LMFT 37501 to Respondent. The Marriage and Family

1 Therapist License was in full force and effect at all times relevant to the charges brought in
2 Accusation No. 2002015001967 and will expire on January 31, 2018, unless renewed.

3 JURISDICTION

4 4. Accusation No. 2002015001967 was filed before the Board of Behavioral Sciences
5 (Board), Department of Consumer Affairs, and is currently pending against Respondent. The
6 Accusation and all other statutorily required documents were properly served on Respondent on
7 November 23, 2015. Respondent timely filed his Notice of Defense contesting the Accusation.

8 5. A copy of Accusation No. 2002015001967 is attached as exhibit A and incorporated
9 herein by reference.

10 ADVISEMENT AND WAIVERS

11 6. Respondent has carefully read, fully discussed with counsel, and understands the
12 charges and allegations in Accusation No. 2002015001967. Respondent has also carefully read,
13 fully discussed with counsel, and understands the effects of this Stipulated Settlement and
14 Disciplinary Order.

15 7. Respondent is fully aware of his legal rights in this matter, including the right to a
16 hearing on the charges and allegations in the Accusation; the right to be represented by counsel at
17 his own expense; the right to confront and cross-examine the witnesses against him; the right to
18 present evidence and to testify on his own behalf; the right to the issuance of subpoenas to compel
19 the attendance of witnesses and the production of documents; the right to reconsideration and
20 court review of an adverse decision; and all other rights accorded by the California
21 Administrative Procedure Act and other applicable laws.

22 8. Respondent voluntarily, knowingly, and intelligently waives and gives up each and
23 every right set forth above.

24 CULPABILITY

25 9. Respondent admits the truth of each and every charge and allegation in Accusation
26 No. 2002015001967.

27 ///

28 ///

1 10. Respondent agrees that his Marriage and Family Therapist License is subject to
2 discipline and he agrees to be bound by the Board's probationary terms as set forth in the
3 Disciplinary Order below.

4 CONTINGENCY

5 11. This stipulation shall be subject to approval by the Board. Respondent understands
6 and agrees that counsel for Complainant and the staff of the Board may communicate directly
7 with the Board regarding this stipulation and settlement, without notice to or participation by
8 Respondent or his counsel. By signing the stipulation, Respondent understands and agrees that he
9 may not withdraw his agreement or seek to rescind the stipulation prior to the time the Board
10 considers and acts upon it. If the Board fails to adopt this stipulation as its Decision and Order,
11 the Stipulated Settlement and Disciplinary Order shall be of no force or effect, except for this
12 paragraph, it shall be inadmissible in any legal action between the parties, and the Board shall not
13 be disqualified from further action by having considered this matter.

14 12. The parties understand and agree that Portable Document Format (PDF) and facsimile
15 copies of this Stipulated Settlement and Disciplinary Order, including PDF and facsimile
16 signatures thereto, shall have the same force and effect as the originals.

17 13. This Stipulated Settlement and Disciplinary Order is intended by the parties to be an
18 integrated writing representing the complete, final, and exclusive embodiment of their agreement.
19 It supersedes any and all prior or contemporaneous agreements, understandings, discussions,
20 negotiations, and commitments (written or oral). This Stipulated Settlement and Disciplinary
21 Order may not be altered, amended, modified, supplemented, or otherwise changed except by a
22 writing executed by an authorized representative of each of the parties.

23 14. In consideration of the foregoing admissions and stipulations, the parties agree that
24 the Board may, without further notice or formal proceeding, issue and enter the following
25 Disciplinary Order:

26 DISCIPLINARY ORDER

27 IT IS HEREBY ORDERED that Marriage and Family Therapist License No. LMFT 37501
28 issued to David Arthur Vandever (Respondent) is revoked. The revocation is stayed and

1 Respondent is placed on three (3) years probation with the following terms and conditions.
2 Probation shall continue on the same terms and conditions if Respondent is granted another
3 registration or license regulated by the Board.

4 1. **Psychotherapy**

5 Respondent shall participate in ongoing psychotherapy with a California licensed mental
6 health professional who has been approved by the Board. Within 15 days of the effective date of
7 this decision, Respondent shall submit to the Board or its designee for its prior approval the name
8 and qualifications of one or more therapists of Respondent's choice. Such therapist shall possess
9 a valid California license to practice and shall have had no prior business, professional, or
10 personal relationship with Respondent, and shall not be Respondent's supervisor. Counseling
11 shall be at least once a week unless otherwise determined by the Board. Respondent shall
12 continue in such therapy at the Board's discretion. Cost of such therapy is to be borne by
13 Respondent.

14 Respondent may, after receiving the Board's written permission, receive therapy via
15 videoconferencing if Respondent's good faith attempts to secure face-to-face counseling are
16 unsuccessful due to the unavailability of qualified mental health care professionals in the area.
17 The Board may require that Respondent provide written documentation of his good faith attempts
18 to secure counseling via videoconferencing.

19 Respondent shall provide the therapist with a copy of the Board's decision no later than the
20 first counseling session. Upon approval by the Board, Respondent shall undergo and continue
21 treatment until the Board or its designee determines that no further psychotherapy is necessary.

22 Respondent shall take all necessary steps to ensure that the treating psychotherapist submits
23 quarterly written reports to the Board concerning Respondent's fitness to practice, progress in
24 treatment, and to provide such other information as may be required by the Board. Respondent
25 shall execute a Release of Information authorizing the therapist to divulge information to the
26 Board.

27 If the treating psychotherapist finds that Respondent cannot practice safely or
28 independently, the psychotherapist shall notify the Board within three (3) working days. Upon

1 notification by the Board, Respondent shall immediately cease practice and shall not resume
2 practice until notified by the Board or its designee that Respondent may do so. Respondent shall
3 not thereafter engage in any practice for which a license issued by the Board is required until the
4 Board or its designee has notified Respondent that he may resume practice. Respondent shall
5 document compliance with this condition in the manner required by the Board.

6 2. **Education**

7 Respondent shall take and successfully complete the equivalency of two (2) semester units
8 in each of the following areas: billing and recordkeeping. All course work shall be taken at the
9 graduate level at an accredited or approved educational institution that offers a qualifying degree
10 for licensure as a marriage and family therapist, clinical social worker, educational psychologist,
11 or professional clinical counselor or through a course approved by the Board. Classroom
12 attendance must be specifically required. Course content shall be pertinent to the violations and
13 all course work must be completed within one year from the effective date of this Decision.

14 Within 90 days of the effective date of the decision Respondent shall submit a plan for prior
15 Board approval for meeting these educational requirements. All costs of the course work shall be
16 paid by Respondent. Units obtained for an approved course shall not be used for continuing
17 education units required for renewal of licensure.

18 3. **Law and Ethics Course**

19 Respondent shall take and successfully complete the equivalency of two semester units in
20 law and ethics. Course work shall be taken at the graduate level at an accredited or approved
21 educational institution that offers a qualifying degree for licensure as a marriage and family
22 therapist, clinical social worker, educational psychologist, or professional clinical counselor as
23 defined in Sections 4980.40, 4996.18, 4999.32 or 4999.33 of the Business and Professions Code
24 and Section 1854 of Title 16 of the California Code of Regulations or through a course approved
25 by the Board. Classroom attendance must be specifically required. Within 90 days of the
26 effective date of this Decision, Respondent shall submit a plan for prior Board approval for
27 meeting this educational requirement. Said course must be taken and completed within one year
28 from the effective date of this Decision. The costs associated with the law and ethics course shall

1 be paid by Respondent. Units obtained for an approved course in law and ethics shall not be used
2 for continuing education units required for renewal of licensure.

3 **4. Monitor Billing System**

4 Within fifteen (15) days from the effective date of the decision, Respondent shall submit to
5 the Board or its designee for prior approval the name of one or more independent billing systems
6 which monitor and document the dates and times of client visits. Respondent shall obtain the
7 services of the independent billing system monitoring program within fifteen (15) days after
8 notification of the Board's approval of such program. Clients are to sign documentation stating
9 the dates and time of services rendered by Respondent and no bills are to be issued unless there is
10 a corresponding document signed by the client in support thereof. The billing system service
11 shall submit quarterly written reports concerning Respondent's cooperation with this system. The
12 cost of the service shall be borne by Respondent.

13 **5. Monitor Billing System Audit**

14 Within 60 days of the effective date of this decision, Respondent shall provide to the Board
15 or its designee the names and qualifications of three auditors. The Board or its designee shall
16 select one of the three auditors to annually audit Respondent's billings for compliance with the
17 Billing System condition of probation. During said audit, randomly selected client billing records
18 shall be reviewed in accordance with accepted auditing/accounting standards and practices. The
19 cost of the audits shall be borne by Respondent. Failure to pay for the audits in a timely fashion
20 shall constitute a violation of probation.

21 **6. Obey All Laws**

22 Respondent shall obey all federal, state and local laws, all statutes and regulations
23 governing the licensee, and remain in full compliance with any court ordered criminal probation,
24 payments and other orders. A full and detailed account of any and all violations of law shall be
25 reported by Respondent to the Board or its designee in writing within seventy-two (72) hours of
26 occurrence. To permit monitoring of compliance with this term, Respondent shall submit
27 fingerprints through the Department of Justice and Federal Bureau of Investigation within 30 days
28 of the effective date of the decision, unless previously submitted as part of the licensure

1 application process. Respondent shall pay the cost associated with the fingerprint process.

2 **7. File Quarterly Reports**

3 Respondent shall submit quarterly reports to the Board or its designee as scheduled on the
4 "Quarterly Report Form" (rev. 01/12/01). Respondent shall state under penalty of perjury
5 whether he has been in compliance with all the conditions of probation. Notwithstanding any
6 provision for tolling of requirements of probation, during the cessation of practice Respondent
7 shall continue to submit quarterly reports under penalty of perjury.

8 **8. Comply with Probation Program**

9 Respondent shall comply with the probation program established by the Board and
10 cooperate with representatives of the Board in its monitoring and investigation of Respondent's
11 compliance with the program.

12 **9. Interviews with the Board**

13 Respondent shall appear in person for interviews with the Board or its designee upon
14 request at various intervals and with reasonable notice.

15 **10. Failure to Practice**

16 In the event Respondent stops practicing in California, Respondent shall notify the Board or
17 its designee in writing within 30 calendar days prior to the dates of non-practice and return to
18 practice. Non-practice is defined as any period of time exceeding thirty calendar days in which
19 Respondent is not engaging in any activities defined in Sections 4980.02, 4989.14, 4996.9, or
20 4999.20 of the Business and Professions Code. Any period of non-practice, as defined in this
21 condition, will not apply to the reduction of the probationary term and will relieve Respondent of
22 the responsibility to comply with the probationary terms and conditions with the exception of this
23 condition and the following terms and conditions of probation: Obey All Laws; File Quarterly
24 Reports; Comply With Probation Program; Maintain Valid License/Registration; and Cost
25 Recovery. The failure to practice for a total of two years shall be a violation of probation and
26 Respondent's registration/license shall be subject to cancellation.

27 **11. Change of Place of Employment or Place of Residence**

28 Respondent shall notify the Board or its designee in writing within 30 days of any change

1 of place of employment or place of residence. The written notice shall include the address, the
2 telephone number and the date of the change.

3 **12. Supervision of Unlicensed Persons**

4 While on probation, Respondent shall not act as a supervisor for any hours of supervised
5 practice required for any license issued by the Board. Respondent shall terminate any such
6 supervisorial relationship in existence on the effective date of this Decision.

7 **13. Notification to Clients**

8 Respondent shall notify all clients when any term or condition of probation will affect their
9 therapy or the confidentiality of their records, including but not limited to supervised practice,
10 suspension, or client population restriction. Such notification shall be signed by each client prior
11 to continuing or commencing treatment. Respondent shall submit, upon request by the Board or
12 its designee, satisfactory evidence of compliance with this term of probation.

13 **14. Notification to Employer**

14 Respondent shall provide each of his current or future employers, when performing services
15 that fall within the scope of practice of his license, a copy of this Decision and the Accusation
16 before commencing employment. Notification to Respondent's current employer shall occur no
17 later than the effective date of the Decision or immediately upon commencing employment.
18 Respondent shall submit, upon request by the Board or its designee, satisfactory evidence of
19 compliance with this term of probation.

20 Respondent shall provide to the Board the names, physical addresses, and telephone
21 numbers of all employers, supervisors, and contractors.

22 Respondent shall complete the required consent forms and sign an agreement with the
23 employer and supervisor, or contractor, and the Board to allow the Board to communicate with
24 the employer and supervisor or contractor regarding the licensee or registrant's work status,
25 performance, and monitoring.

26 **15. Violation of Probation**

27 If Respondent violates the conditions of his probation, the Board, after giving Respondent
28 notice and the opportunity to be heard, may set aside the stay order and impose the discipline

1 (revocation/suspension) of Respondent's license provided in the decision.

2 If during the period of probation, an accusation, petition to revoke probation, or statement
3 of issues has been filed against Respondent's license or application for licensure, or the Attorney
4 General's office has been requested to prepare such an accusation, petition to revoke probation, or
5 statement of issues, the probation period set forth in this decision shall be automatically extended
6 and shall not expire until the accusation, petition to revoke probation, or statement of issues has
7 been acted upon by the Board. Upon successful completion of probation, Respondent's license
8 shall be fully restored.

9 **16. Maintain Valid License**

10 Respondent shall, at all times while on probation, maintain a current and active license with
11 the Board, including any period during which suspension or probation is tolled. Should
12 Respondent's license, by operation of law or otherwise, expire, upon renewal Respondent's
13 license shall be subject to any and all terms of this probation not previously satisfied.

14 **17. License Surrender**

15 Following the effective date of this decision, if Respondent ceases practicing due to
16 retirement or health reasons, or is otherwise unable to satisfy the terms and conditions of
17 probation, Respondent may voluntarily request the surrender of his license to the Board. The
18 Board reserves the right to evaluate Respondent's request and to exercise its discretion whether to
19 grant the request or to take any other action deemed appropriate and reasonable under the
20 circumstances. Upon formal acceptance of the surrender, Respondent shall within 30 calendar
21 days deliver Respondent's license and certificate and, if applicable, wall certificate to the Board
22 or its designee and Respondent shall no longer engage in any practice for which a license is
23 required. Upon formal acceptance of the tendered license, Respondent will no longer be subject
24 to the terms and conditions of probation.

25 Voluntary surrender of Respondent's license shall be considered to be a disciplinary action
26 and shall become a part of Respondent's license history with the Board. Respondent may not
27 petition the Board for reinstatement of the surrendered license. Should Respondent at any time
28 after voluntary surrender ever reapply to the Board for licensure Respondent must meet all

1 current requirements for licensure including, but not limited to, filing a current application,
2 meeting all current educational and experience requirements, and taking and passing any and all
3 examinations required of new applicants.

4 **18. Instruction of Coursework Qualifying for Continuing Education**

5 Respondent shall not be an instructor of any coursework for continuing education credit
6 required by any license issued by the Board.

7 **19. Notification to Referral Services**

8 Respondent shall immediately send a copy of this decision to all referral services registered
9 with the Board in which Respondent is a participant. While on probation, Respondent shall send
10 a copy of this decision to all referral services registered with the Board that Respondent seeks to
11 join.

12 **20. Reimbursement of Probation Program**

13 Respondent shall reimburse the Board for the costs it incurs in monitoring the probation to
14 ensure compliance for the duration of the probation period. Reimbursement costs shall be
15 \$1,200.00 per year.

16 **21. Cost Recovery**

17 Respondent shall pay the Board \$1,060.00 as and for the reasonable costs of the
18 investigation and prosecution of Case No. 2002015001967. Respondent shall make the check or
19 money order payable to the Board of Behavioral Sciences and shall indicate on the check or
20 money order that it is the cost recovery payment for Case No. 2002015001967. Any order for
21 payment of cost recovery shall remain in effect whether or not probation is tolled. Probation shall
22 not terminate until full payment has been made. Should any part of cost recovery not be paid in
23 accordance with the outlined payment schedule, Respondent shall be considered to be in violation
24 of probation. A period of non-practice by Respondent shall not relieve Respondent of his
25 obligation to reimburse the Board for its costs.

26 Cost recovery must be completed six months prior to the termination of probation. A
27 payment plan authorized by the Board may be extended at the discretion of the Enforcement
28 Manager based on good cause shown by the probationer.

1 ACCEPTANCE

2 I have carefully read the above Stipulated Settlement and Disciplinary Order and have fully
3 discussed it with my attorney, Christopher J. Zopatti. I understand the stipulation and the effect it
4 will have on my Marriage and Family Therapist License. I enter into this Stipulated Settlement
5 and Disciplinary Order voluntarily, knowingly, and intelligently, and agree to be bound by the
6 Decision and Order of the Board of Behavioral Sciences.

7
8 DATED: 4-4-2016

DAVID ARTHUR VANDEVERT
Respondent

10 I have read and fully discussed with Respondent David Arthur Vandever the terms and
11 conditions and other matters contained in the above Stipulated Settlement and Disciplinary Order.
12 I approve its form and content.

13
14 DATED: 4-8-16

CHRISTOPHER J. ZOPATTI
Attorney for Respondent

16 ENDORSEMENT

17 The foregoing Stipulated Settlement and Disciplinary Order is hereby respectfully
18 submitted for consideration by the Board of Behavioral Sciences.

19
20 Dated: April 11, 2016

Respectfully submitted,

21 KAMALA D. HARRIS
22 Attorney General of California
23 JOSHUA A. ROOM
Supervising Deputy Attorney General

24 Nicholas Tsukamaki
25 NICHOLAS TSUKAMAKI
26 Deputy Attorney General
Attorneys for Complainant

27 SF2015402926
41444266.doc